

BEFORE THE STATE BOARD OF LICENSE PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 03.046(C)

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
JEAN BELL-DUMAS, LPC, LICENSE NO. 1172,

RESPONDENT.

IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners ("Board") and Jean Bell-Dumas, LPC ("Respondent") as
follows:

1. The Board has jurisdiction over the person of Respondent, her license to practice professional counseling, and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado at all times relevant herein.
3. Respondent admits the following:
 - a. Respondent was hired to provide individual counseling for MC;
 - b. Respondent agreed to conduct a psychological evaluation of MC, at the request of MC's counsel, but ultimately conducted an evaluation that included components of a custody evaluation, also at the request of MC's counsel;
 - c. Respondent was not qualified to conduct a custody evaluation;
 - d. Although Respondent closed MC's case, at MC's request, five months prior to the evaluation, by conducting an evaluation that included custody evaluation components, Respondent engendered multiple dual roles and violated boundaries.

4. By virtue of the facts admitted in paragraph 3 above, the Board finds that respondent violated § 12-43-222(1)(g), C.R.S.

5. The statutory authority of the Board is as follows:

12-43-222. Prohibited activities – related provisions. (1)

A person licensed, registered, or regulated under part 3, 4, 5, 6, or 7 of this article is in violation of this article if such person:

(g) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which such person practices. A certified copy of a malpractice judgment of a court of competent jurisdiction shall be conclusive evidence of such act or omission, but evidence of such act or omission shall not be limited to a malpractice judgment.

6. By virtue of the admissions above, Respondent is subject to the following disciplinary sanction that the Board believes necessary to protect the public health, safety, and welfare.

7. Respondent's license to practice licensed professional counseling in the State of Colorado will be on probationary status for a minimum of two (2) years commencing from the effective date of this Order and until Respondent has complied with the terms and conditions of this Order. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

8. A practice monitor shall monitor Respondent's practice during the term of probation. Within 30 days of the effective date of this Order, Respondent shall nominate, in writing, three proposed practice monitors for the Board's approval. Respondent shall include for consideration a current curriculum vita of each proposed monitor and a commitment letter from the monitor stating that s/he has read this Order and understands and agrees to perform the obligations set forth herein. The practice monitor shall meet the following criteria:

a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado and shall have no record of discipline.

b. It is recommended that the practice monitor shall have a minimum of five years experience.

c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. This limitation excludes former employees and business associates.

d. Respondent or the practice monitor may terminate the monitoring relationship on written notice to the other and the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall

immediately initiate efforts to obtain another Board approved practice monitor, who shall conduct her/his monitoring and report to the Board in accordance with this Order.

7. The following terms and conditions shall apply with regard to the practice monitoring:

a. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, of the complaint and responsive documents, and of the practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall assure that a written notification is provided to each client informing the client of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

b. The practice monitoring shall consist of individual in person (face-to-face) contact that occurs at least one hour or such longer time as the practice monitor deems necessary for every 20 hours of client contact, or once a week. During the practice monitoring sessions, Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month to allow the practice monitor to determine whether Respondent is practicing licensed professional counseling in accordance with generally accepted standards of practice and will skill and safety for her clients.

c. The practice monitor shall submit written reports to report the result of the practice monitoring. The practice monitor shall submit the written reports to the Board on the fifth day of the first full month after the Board approves the practice monitor. All subsequent reports shall be submitted on the fifth day of each month for the first twelve reports. After the submission of the first twelve (12) reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

d. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor thirty (30) days notice prior to requiring the practice monitor's attendance at the Board meeting.

e. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and with safety to his patients or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, with an explanation of the reasons for such a conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of licensed professional counseling.

f. Respondent shall make efforts to assure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the

practice monitor fails to perform the function specified by this order, the Board may require a new practice monitor to assume responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall nominate a new practice monitor to the Board within thirty (30) days.

8. During the period of probation, Respondent must successfully complete at least twenty (20) hours each year of Board approved, professional continuing education courses in the areas of boundaries, dual relationships, testing, difference between psychological evaluations and custody evaluations, duty to warrant and how to assess a client. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

9. The following terms and conditions apply to this Order:

a. Respondent will strictly observe the prohibitions set forth in § 12-43-222, C.R.S. and assure that she does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

b. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order

c. All expenses associated with the practice evaluation, therapy evaluation, therapy, practice monitoring, education and any other expenses incurred in fulfilling the terms of this Order shall be borne by Respondent.

d. As part of this Order, Respondent agrees to provide access to her medical and psychological records and information and explicitly waives her right to maintain confidentiality of her medical and psychological records and information provided to the practice evaluator/monitor if the practice evaluator/monitor determines that she is not practicing licensed professional counseling in accordance with generally accepted standards of practice or has any condition which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care. This waiver only applies to material sent directly to the Board and the Board does not have authority to disseminate this information to any individual other than the Board's attorneys.

e. In the event Respondent relocates to another state at any time during the probationary period, Respondent shall notify the Director of the change of address within 30 days of the effective date of such change.

f. The period of probation is tolled during any time that Respondent is not practicing in this state, and such period of probation shall resume at such time as Respondent resumes practicing in accordance with this Order in the State of Colorado.

g. Credit towards the period of probation will be given only for the period of time during which Respondent is practicing as a licensed professional counselor in

Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

10. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges this waiver constitutes a waiver of all rights to appeal in this matter.

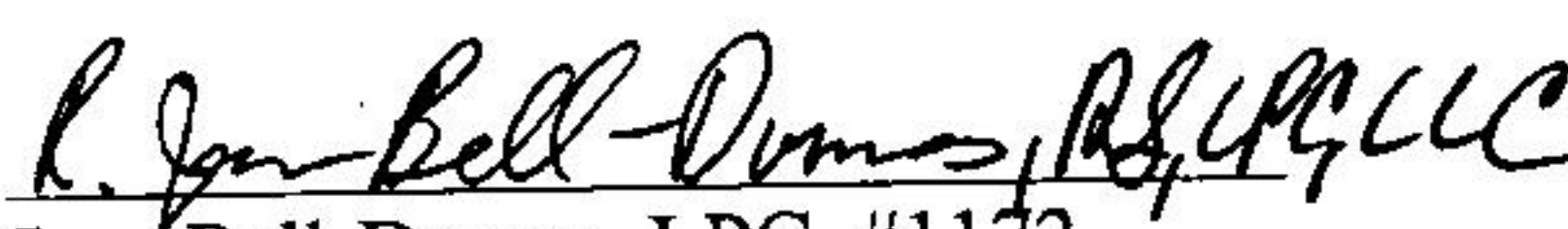
11. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

12. This Order of the Board entered pursuant to Stipulation shall constitute a Board order for purposes of § 12-43-222, C.R.S. and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to § 12-43-224, C.R.S.

13. This Order shall become effective when accepted and signed on behalf of the Board.

14. This Order shall be a public record at all times in the custody of the Board.

RESPONDENT


Jean Bell-Dumas, LPC, #1172

APPROVED AS TO FORM


Erin McManus, Esquire # 31019
Cliggett & Associates, PC
P. O. Box 867
Gunnison, Colorado 81230
(970) 641-1154

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**


Cindy J. Musil, President,
State Board of Licensed Professional Counselor
Examiners

Effective Date: This 27th day of

May 2005.